UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA · SAN JOSE DIVISION

RESEARCH MEMORANDUM

Brendan Ngwa Nforbi v. The Hertz Corporation and HireRight, LLC

Authorities, statute text, and recommended complaint edits drawn from Westlaw Patron Access and official sources

BRENDAN NGWA NFORBI,
also known as Brendan Ngwanforbi,
Plaintiff, in propria persona

v.

THE HERTZ CORPORATION,
a Delaware corporation; and
HIRERIGHT, LLC,
a Delaware limited liability company,
Defendants.

CASE INFORMATION

Court: U.S. District Court, N.D. Cal., San Jose Division

Complaint reviewed: 25-page verified complaint (draft, dated November 12, 2026)

Five causes of action: FCRA § 1681e(b); Penal Code § 290.46(j); ICRAA; Labor Code § 432.7; Bus. & Prof. Code §§ 16600–16600.5

Date of this memorandum	November 12, 2026 (America/Los_Angeles, Pacific Time)
Westlaw session	Thomson Reuters Patron Access, Hillsborough County Public Library Cooperative, Florida (RPA-005876850-4200). Statute re-run and KeyCite on November 12, 2026. Nine opinions read in full on a later login the same day, at about 12:25 p.m. Pacific Time.
Statute currency (Westlaw)	California statutes current through Chapter 1040 of the 2026 Regular Session. United States Code current through Public Law 119-138.
What this is	A research memorandum prepared against the verified complaint and a seven-page Westlaw research plan. It is not a court filing and has not been served.

RESEARCH MEMORANDUM — NOT LEGAL ADVICE; PREPARED FROM WESTLAW PATRON ACCESS AND OFFICIAL SOURCES; VERIFY BEFORE FILING.

This memorandum is a research aid for a self-represented plaintiff. It is not legal advice, is not an opinion of counsel, and does not create an attorney-client relationship. Nothing in it has been filed or served. Every citation, quotation, and pin cite must be verified against the official reporter or a current Westlaw document before it is used in a pleading or brief.

Star-page citations taken from on-screen Westlaw reads are marked where the session notes called them approximate. Result-list-only cases are labeled as such and should not be cited until the full opinion is read. KeyCite flags that were noted but not opened are identified as unchecked. This memorandum does not contain Social Security numbers, dates of birth, driver's-license numbers, or bank information.

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CITATION CONFIDENCE — USED THROUGHOUT

FULL TEXT Opinion (or the quoted passage) was read on Westlaw on November 12, 2026. Quotes may be used after reporter verification.

STATUTE TEXT Operative wording confirmed on the Westlaw re-run (currency noted) and, where a full quotation is given, aligned with the official LegInfo or GovInfo text retrieved the same day.

KEYCITE Status taken from the Westlaw KeyCite display. Later citing cases listed in that display were not themselves read in full unless this memorandum says otherwise.

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OPEN / UNCHECKED Planned work not done, or a KeyCite flag that was noted but not opened.

I. Executive summary

This memorandum reports Westlaw research run on November 12, 2026, against the 25-page verified complaint in *Brendan Ngwa Nforbi v. The Hertz Corporation and HireRight, LLC*, to be filed in the San Jose Division of the Northern District of California. The complaint has five causes of action. The first, under the Fair Credit Reporting Act (FCRA), 15 U.S.C. § 1681e(b), is against HireRight. The remaining four — California Penal Code § 290.46(j) (Megan's Law employment-use bar), the Investigative Consumer Reporting Agencies Act (ICRAA), Labor Code § 432.7, and Business and Professions Code §§ 16600–16600.5 — are against Hertz. The fourth count is pleaded in the alternative to the second.

The facts, as the complaint alleges them, are these. On October 22, 2026, Hertz offered the plaintiff a full-time Manager Trainee position at its Palo Alto branch, at $23.00 an hour, and he accepted the same day (¶¶ 2, 15–20). Hertz ordered a HireRight background report that included a separately itemized "National Sex Offender Registry" product (¶¶ 2, 24). HireRight returned two California registry results, graded "Client Review Required," with a printed warning that California registry information "may not be used for employment purposes except to protect a person at risk" (¶¶ 2, 35–36). HireRight delivered the completed report at 2:29 a.m. Pacific Time on November 2, 2026. At 10:19 a.m. the same morning — less than eight hours later — Hertz sent a notice of a "preliminary decision recinding the offer," listing as information "including" the basis a single line: "[Criminal Information] Alcohols related offenses-Does not meet" (¶¶ 3, 40–43). The plaintiff has no alcohol-related criminal conviction. The only alcohol-related information in the report is a Department of Motor Vehicles administrative record that Hertz had held since October 23, 2026, while it continued to onboard him for ten days (¶¶ 3, 25–28).

A. Strongest claims

1. The ICRAA disclosure claim (Count 3), and Article III standing for it, are materially stronger than they were before this research. *Seyed-Ali v. HireRight, LLC*, No. CV 25-3755 PA, 2025 WL 2659234 (C.D. Cal. Aug. 15, 2025) FULL TEXT, is the closest published analog. The employer (AstraZeneca) revoked an offer after a HireRight report showed false employment gaps. The district court denied the employer's motion to dismiss. The court held that the FCRA notice violation harmed the plaintiff "by depriving her of an opportunity to formally contest the alleged inaccuracies in the Report and to preserve her employment opportunity before it was revoked" (at *5). Her ICRAA and unfair-competition claims were also pleaded and survived. That standing theory maps directly onto ¶¶ 11 and 76 of this complaint: Hertz procured a registry search under a disclosure the plaintiff says was not standalone, and used the results against him in the November 2 notice.

Parsonage v. Wal-Mart Associates, Inc., 118 Cal. App. 5th 399 (4th Dist. Div. 1, Feb. 4, 2026), review denied Apr. 29, 2026 FULL TEXT, holds that "ICRAA's remedies provision does not add any additional standing requirement, such as a showing of actual damages or injury" (at *417), and that "the Legislature made clear the agency or user should be held liable regardless of whether the consumer suffers any actual damages" (at *417). That is strong support for the $10,000 statutory floor in Civil Code § 1786.50(a)(1). It is a *state-court* standing and remedies rule. In the Northern District of California it should be paired with *Seyed-Ali* (and with the dissemination holding of *TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021)) for Article III, not used alone.

2. The FCRA accuracy claim against HireRight (Count 1) has a fresh Ninth Circuit standing decision and two helpful (but flagged) district-court cases on mislabeled criminal information. *Healy v. Milliman, Inc.*, 164 F.4th 701 (9th Cir. Jan. 9, 2026) FULL TEXT, holds that a § 1681e(b) plaintiff may prove standing at summary judgment with "either direct evidence or circumstantial evidence" (at approximately *709). That helps ¶ 62, which rests on dissemination of the inaccurate designation to Hertz and the notice that followed within hours. *Ridenour v. Multi-Color Corp.*, 147 F. Supp. 3d 452 (E.D. Va. 2015) FULL TEXT, allowed § 1681e(b) claims to go forward where a traffic offense was reported as a crime. *Brown v. Lowe's Cos.*, 52 F. Supp. 3d 749 (W.D.N.C. 2014) FULL TEXT, denied motions to dismiss where a report omitted the reversal of a felony, and stated that the purpose of the pre-action copy "is to enable a potential employee to receive his draft report and correct any inaccurate information in the report before any decision or action is commenced" (at *755). Both of those out-of-circuit cases carry KeyCite negative treatment that was noted and not opened. They should be checked before they are cited.

3. The Labor Code § 432.7 claim (Count 4) is reinforced by a September 2026 Court of Appeal decision, with a geographic caveat. *A.S. v. Los Angeles Unified School District*, 123 Cal. App. 5th 519 (2d Dist. Div. 8, Sept. 22, 2026) FULL TEXT, holds that "Employers cannot ask job applicants to disclose dismissed convictions and cannot 'utilize' records of dismissed convictions" (at *526), and that a statutory exception permitting an employer to *seek* a record does not permit the employer to *use* it to reject the applicant. The complaint's theory is a Department of Motor Vehicles chemical-test-refusal entry treated as a record of a non-conviction arrest (¶¶ 80–82), which is not the same as an expunged misdemeanor. The "cannot utilize" holding and the seeking-versus-using distinction are still useful, if the factual difference is acknowledged. *Saberin v. Alation, Inc.*, 122 Cal. App. 5th 165 (1st Dist. 2026) FULL TEXT, holds that "the unlawful conduct at issue must have a sufficient connection to California" (at *179), and that "[t]he unlawful conduct under Section 12952 and Labor Code section 432.7 is the termination decision itself" (at *180). The complaint already pleads California residence, a San Jose interview, and a Palo Alto job (¶¶ 5, 15–16). It also alleges that the HireRight order was requested by a Hertz employee in Estero, Florida (¶ 24). That Florida fact is a *Saberin* risk and should be addressed, not ignored.

4. The statutory remedies, as re-run on Westlaw, support the amounts already pleaded. Civil Code § 1786.50(a)(1) gives actual damages or $10,000 (except in class actions), whichever is greater, plus costs and fees; subdivision (b) allows punitive damages if the violation was grossly negligent or willful. Labor Code § 432.7(c) gives actual damages or $200, whichever is greater; an intentional violation gives treble actual damages or $500, whichever is greater, plus costs and fees, and is a misdemeanor. Penal Code § 290.46(j)(4)(A) gives actual damages, up to treble with a $250 floor, attorney's fees, and exemplary damages or a civil penalty not exceeding $25,000; (j)(4)(B) authorizes an aggrieved person to seek a pattern-or-practice injunction. Business and Professions Code § 16600.5(e) gives a prospective employee a private action for injunctive relief, actual damages, or both, with prevailing-party fees. FCRA § 1681n(a) gives $100–$1,000 statutory damages, punitive damages, and fees for a willful violation; § 1681o(a) gives actual damages and fees for a negligent violation. Currency: California through Chapter 1040 of the 2026 Regular Session; United States Code through Public Law 119-138. STATUTE TEXT

B. Biggest risks

PRINCIPAL LITIGATION RISKS — ADDRESS BEFORE FILING

Section 290.46 against a screening company is weak, and should not be added against HireRight. *Mendoza v. ADP Screening & Selection Services*, 182 Cal. App. 4th 1644 (2010) FULL TEXT, holds that liability "should be limited to employers who 'use' information disclosed on the [Megan's Law Website] as a basis for an employment decision" (at *1657), and that the plaintiff's "cause of action, if any, lies against his prospective employer, and not SASS" (at *1658). *McGroarty v. American Background Information Services*, 2009 WL 980417 (C.D. Cal. Apr. 8, 2009) FULL TEXT, describes agencies as "the gatherers and distributors of information, not the ultimate users of the information" (at *3). The complaint already names only Hertz on Count 2. Keep it that way, and write the "use" allegations (¶¶ 47, 67) to track Mendoza's "as a basis for an employment decision" language.

An independent-source defense is predictable. *Donaleski v. Wal-Mart Stores*, 2009 WL 1296257 (E.D. Cal. May 8, 2009) KEYCITE found no prohibited use where the employment decision followed an independent investigation and the employee's own admissions, even though a registry result was the lead. The complaint itself alleges that the report also contained a Santa Clara County Superior Court record of felony convictions (¶ 39, which the PDF extract used for this memorandum truncated at the code section). Hertz may argue that any decision rested on court records or on the driving record, not on "information disclosed pursuant to" § 290.46. The complaint's timing theory (ten days of inaction on the motor-vehicle record; a notice within eight hours of the completed report that contained the registry hits) and the Notice's "including" language (¶¶ 28, 41–43, 48) are the principal answers. Citing references to *Donaleski* were not pulled (research-plan Part 6, still open).

The "disclosed pursuant to this section" question for a National Sex Offender Public Website (NSOPW) search remains unanswered by any opinion this research read. That was a stated goal of the research plan, and it is still open. Count 2 depends on this link (¶¶ 31–32, 66).

Saberin is a real geographic risk on Count 4 if Hertz made the rescission decision in Florida. See recommended edit 2 below.

Article III on a pure disclosure-format claim is not automatic. *Parsonage* does not itself supply federal standing. *TransUnion* treats dissemination to a third party as concrete harm, and treats undisclosed file alerts and future-risk theories as insufficient. The complaint should keep the "used against him" hook in ¶ 76 and add *Seyed-Ali*.

C. Recommended complaint edits (top ten)

These are suggested changes to the verified complaint, referenced to its paragraph numbers. They are research recommendations, not a rewrite of the pleading. Nothing has been filed.

Table 1. Recommended complaint edits, in priority order

#	WHERE	WHAT TO DO, AND WHY
1	Count 2 caption; ¶¶ 47, 67	**Keep § 290.46 aimed at Hertz only.** Do not add HireRight as a defendant on this count. Tighten the "use" allegations so they describe Hertz using Megan's Law information "as a basis for an employment decision," which is the formulation in *Mendoza*, 182 Cal. App. 4th at 1657. The present caption already says "Against Hertz." Leave it that way.

#	WHERE	WHAT TO DO, AND WHY
2	¶¶ 5, 15–16, 24; new short paragraph near Count 4	**Add a California "decision-location" anchor for § 432.7.** *Saberin* holds that the unlawful conduct "is the termination decision itself" and must have "a sufficient connection to California" (122 Cal. App. 5th at 179–80). The complaint already pleads that the plaintiff lives in Stockton, interviewed in San Jose, and was offered a Palo Alto job (¶¶ 5, 15–16). Paragraph 24 also alleges that the HireRight order was requested by a Hertz pre-employment employee in Estero, Florida. Plead, if it is true and known, where Hertz made the rescission decision. If that location is Florida, take *Saberin* seriously and develop every California connection that exists. Do not assume residence and job location are enough if the decision itself was made out of state.
3	¶¶ 11, 76	**Strengthen Article III standing with** *Seyed-Ali* **and** *Healy***.** In ¶ 11 and ¶ 76, plead the concrete harm as the lost opportunity to contest inaccuracies and to preserve the accepted job before it was revoked — the injury the Central District found sufficient in *Seyed-Ali*, 2025 WL 2659234, at *5. For Count 1, add that standing may be shown by circumstantial evidence under *Healy*, 164 F.4th 701. Do not rely on *Parsonage* alone for federal standing. Use *Parsonage* for the ICRAA $10,000 remedies rule, and *Seyed-Ali* plus *TransUnion* for Article III.
4	¶¶ 80–82	**Add** *A.S. v. LAUSD* **to Count 4, and be precise about the facts.** Cite the holding that employers cannot "utilize" records of dismissed convictions, and that permission to seek a record is not permission to use it to reject an applicant (123 Cal. App. 5th at 525–26). State plainly that the complaint's record is a DMV chemical-test-refusal entry offered as a record of a non-conviction arrest (¶¶ 27, 81), not an expunged misdemeanor, so that the analogy is honest and a motion to dismiss cannot paint it as a misstatement.
5	¶¶ 39, 47–48, 67; consider a short new paragraph	**Preempt the** *Donaleski* **independent-source defense.** Keep the timing theory (motor-vehicle record held for ten days with no adverse action, ¶¶ 25–28; Notice within eight hours of the completed report, ¶¶ 40–41). Address the Santa Clara County court record alleged in ¶ 39: Count 2 is about use of information disclosed on the Megan's Law website, not about the mere existence of a court record. If Hertz used court records independently, that may not violate § 290.46, but it does not by itself defeat a well-pleaded inference that Hertz also used the registry product it had selected and routed to "Client Review" (¶¶ 38, 47). Citing references to *Donaleski* are still an open research item.
6	¶¶ 59–62	**On Count 1, use** *Ridenour* **and** *Brown* **only after checking their KeyCite flags.** They help on a traffic or administrative record reported as a crime, and on the purpose of letting an applicant correct a report before a decision. *Ridenour* has four KeyCite negative entries, not opened. *Brown* was "Declined to Extend" by *Wright v. Lincoln Prop.*, also unchecked. The Ninth Circuit standard remains *Carvalho v. Equifax*, 629 F.3d 876, 891 (9th Cir. 2010) (yellow flag), and *Shaw v. Experian*, 891 F.3d 749 (9th Cir. 2018) (yellow flag): imprecision is not enough without a materially misleading effect.
7	¶¶ 54, 79–83	**Plead applicant status clearly for the § 432.7(c) remedies.** *Faria v. San Jacinto Unified School District*, 50 Cal. App. 4th 1939 (1996) KEYCITE treats the statutory, treble, and fee remedies in § 432.7(c) as available to applicants; employees recover actual damages. The complaint already alleges that the plaintiff accepted the offer and was never allowed to start (¶¶ 20, 54). Keep that distinction sharp. *Faria* is yellow-flagged (declined to follow, *Harris v. Vector Marketing*, N.D. Cal. May 20, 2010) — note the flag if the case is cited.
8	¶ 85	**Add the 2024 text of § 16600(c) to Count 5.** Westlaw and the official text confirm that, as amended by Assembly Bill 1076 (Stats. 2023, ch. 828), section 16600(c) provides that the section "shall not be limited to contracts where the person being restrained from engaging in a lawful profession, trade, or business is a party to the contract." Section 16600.5(e)(1)–(2), added by Senate Bill 699 (Stats. 2023, ch. 157), already supports a prospective employee's private action for injunctive relief, actual damages, or both, plus fees — as ¶ 85 currently states. Cases found on a § 16600.5 search (*Mitchell*, *Horton*, *NFP*) are result-list only and have not been read. The research plan's request for a decision allowing a prospective employee's claim on an offer-letter noncompete term remains open.

#	WHERE	WHAT TO DO, AND WHY
9	Any history discussion of § 290.46; memos	**Correct the legislative history if a draft says the employment-use provisions were "renumbered" from (l) to (j) by Assembly Bill 1844.** Westlaw's credits on the current section state that it was *added* by Senate Bill 384, Stats. 2017, ch. 541, § 10, effective January 1, 2018, operative January 1, 2022, and later amended by Stats. 2018, ch. 423 (SB 1494) and Stats. 2021, ch. 615 (AB 474), operative January 1, 2023. Official chaptered bills reviewed the same day are consistent: Assembly Bill 1844 kept the person-at-risk and civil-remedy provisions in former subdivision (l); Senate Bill 384, section 10, is the first official text in which those provisions appear as subdivision (j), operative January 1, 2022. The current section is not a simple renumbering.
10	¶¶ 61, 70, 77	**Tie willfulness and punitive allegations to the standards that were confirmed.** For FCRA, *Safeco Insurance Co. v. Burr*, 551 U.S. 47 (2007) (yellow: declined to extend in *Schutte v. SuperValu*, 143 S. Ct. 1391 (2023)), treats willfulness as including reckless disregard; an objectively reasonable reading of the statute is not reckless (KeyCite PIN HN1). Paragraph 61 already points to HireRight's own motor-vehicle section treating the same entries as licensing actions. For ICRAA, § 1786.50(b) authorizes punitive damages if the court finds the violation "grossly negligent or willful" — which ¶ 77 already alleges, pointing to the standalone rule as settled since at least 2019 (see *Gilberg*, discussed in Count 3). For § 290.46, ¶ 70 already points to the prohibition printed on the report (¶ 36).

Two further drafting points, not numbered as separate edits. First, the soft spot identified in the research plan — whether the label "[Criminal Information] Alcohols related offenses-Does not meet" is HireRight's adjudication or a Hertz reviewer's — remains a pleading issue. Paragraph 46 already alleges on information and belief that HireRight's adjudication service generated the designation. *Soo Park v. Thompson*, 851 F.3d 910 (9th Cir. 2017), supports information-and-belief pleading when facts are peculiarly in the defendant's possession (PIN HN31), but it is yellow-flagged (called into doubt, *Sims v. Opportunity Financial*, N.D. Cal. Apr. 13, 2021). Keep the information-and-belief form, and keep ¶ 49's statement that the decision-making records are in the defendants' possession. Second, diversity allegations about HireRight's LLC members (¶¶ 7, 10) rest on information and belief. Federal Rule of Civil Procedure 7.1 statements were a planned docket search that was not done (Part 7, still open).

II. Cause-by-cause analysis

Each subsection below states the elements as the research plan framed them, the current statute text as re-run on Westlaw (with currency), supporting authority with quotations and pin cites drawn only from the session catalogs, adverse authority and how to address it, and suggested edits keyed to complaint paragraph numbers.

A. First Cause of Action — FCRA § 1681e(b), against HireRight

Complaint ¶¶ 56–63. Prayer: actual or statutory damages of $100 to $1,000, punitive damages, costs, and fees under 15 U.S.C. § 1681n(a); or actual damages, costs, and fees under § 1681o(a).

1. Elements at the pleading stage

The research plan states four showings that must be made: (1) an inaccuracy — information that is patently incorrect or materially misleading; (2) a failure to follow reasonable procedures to assure maximum possible accuracy; (3) the report reached a third party and caused harm; and (4) willfulness, if statutory and punitive damages are sought under § 1681n. The plan identified a soft spot: attributing the "[Criminal Information] Alcohols related offenses-Does not meet" label to HireRight's adjudication service rather than to a Hertz reviewer. Paragraphs 46 and 59–61 already plead that attribution on informa-

tion and belief, pointing to HireRight's own vocabulary ("Does Not Meet"), a HireRight letter template, and the contrast with HireRight's motor-vehicle section, which did not label the same entries as criminal.

2. Current statute text (Westlaw re-run)

United States Code current through Public Law 119-138, as displayed on Westlaw on November 12, 2026. The wording below matches the official United States Code, 2023 edition, on GovInfo, which was retrieved the same day after uscode.house.gov returned HTTP 404 from the research environment. Cornell LII was used only as a cross-check; its typography is not used here. STATUTE TEXT

15 U.S.C. § 1681e(b) — Accuracy of report. "Whenever a consumer reporting agency prepares a consumer report it shall follow reasonable procedures to assure maximum possible accuracy of the information concerning the individual about whom the report relates."

15 U.S.C. § 1681a(d)(1) defines a "consumer report," in relevant part, as a communication by a consumer reporting agency of information bearing on a consumer's credit worthiness, character, general reputation, personal characteristics, or mode of living, used or expected to be used as a factor in establishing eligibility for, among other things, "employment purposes."

15 U.S.C. § 1681n(a) (willful noncompliance) makes a person liable for "(1)(A) any actual damages sustained by the consumer as a result of the failure or damages of not less than $100 and not more than $1,000"; "(2) such amount of punitive damages as the court may allow"; and "(3) … the costs of the action together with reasonable attorney's fees."

15 U.S.C. § 1681o(a) (negligent noncompliance) makes a person liable for actual damages and, in a successful action, costs and reasonable attorney's fees.

Westlaw re-run, catalog-02c (statutes "quoted" on screen, November 12, 2026, about 11:55 a.m. Pacific Time); official wording from GovInfo United States Code, 2023 edition, catalog-02b. Westlaw Notes of Decisions on § 1681e(b) listed *Heagerty v. Equifax*, 447 F. Supp. 3d 1328; *Millstone v. O'Hanlon*, 528 F.2d 829 (8th Cir. 1976); and cases captioned Jolly, Caltabiano, and Weidman (full names and holdings not captured). Notes of Decisions on § 1681o listed *Kirtz v. Trans Union*, 46 F.4th 159, *aff'd*, 601 U.S. 42 (2024), and *Doe v. Charter Communications*, 131 F.4th 323 (5th Cir. 2025) — not read in this session.

3. Supporting authority

Healy v. Milliman, Inc., 164 F.4th 701 (9th Cir. Jan. 9, 2026) (No. 24-3327) FULL TEXT, is the January 2026 Ninth Circuit decision that a first-pass result list identified only as "164 F.4th 701." It is a § 1681e(b) class case. The court of appeals reversed, holding that standing at summary judgment may be shown by direct or circumstantial evidence, under a "could infer" standard.

> *"[P]laintiffs can use either direct evidence or circumstantial evidence."*
>
> Healy v. Milliman, Inc., 164 F.4th 701, at approximately *709 (9th Cir. 2026). The star page is marked approximate in the session notes. Verify against the Federal Reporter before quoting.

That holding supports ¶ 62: the inaccurate designation was communicated to Hertz, a third party, and was followed within hours by a preliminary rescission that identified the designation as its basis. The plaintiff does not need a direct admission from a Hertz reviewer at the pleading stage, or even, under *Healy*, at summary judgment, if the circumstantial chain is enough for a reasonable inference.

Seyed-Ali v. HireRight, LLC, 2025 WL 2659234 (C.D. Cal. Aug. 15, 2025) (No. CV 25-3755 PA) FULL TEXT, is against the same consumer reporting agency named in this case. The facts were false employment gaps and an "unable to verify" notation; the employer revoked the offer. The court denied AstraZeneca's mo-

tion to dismiss. The Article III injury on the FCRA notice claim, 15 U.S.C. § 1681b(b)(3), was the lost chance to contest the report before revocation. ICRAA and UCL claims were also pleaded and were not dismissed on that motion. Although Count 1 here is a § 1681e(b) accuracy claim rather than a § 1681b(b)(3) notice claim, the standing theory is closely related: a HireRight report went to the employer, and the job was lost before the applicant could correct the file.

> *The violation "harmed Plaintiff by depriving her of an opportunity to formally contest the alleged inaccuracies in the Report and to preserve her employment opportunity before it was revoked."*
>
> Seyed-Ali v. HireRight, LLC, 2025 WL 2659234, at *5 (C.D. Cal. Aug. 15, 2025).

Ridenour v. Multi-Color Corp., 147 F. Supp. 3d 452 (E.D. Va. 2015) (also appearing on a result list as 2015 WL 7769469) FULL TEXT, involved a traffic offense reported as a crime. Claims under §§ 1681e(b), 1681k, and 1681b(b)(3) survived; willfulness survived for the e(b) and k claims. No quotation was captured in the session notes; do not invent one. KeyCite showed four negative entries, which were not opened. UNCHECKED FLAGS

Brown v. Lowe's Cos., 52 F. Supp. 3d 749 (W.D.N.C. 2014) FULL TEXT, denied motions to dismiss by both the employer and the consumer reporting agency where the report omitted the reversal of a felony.

> *The purpose "is to enable a potential employee to receive his draft report and correct any inaccurate information in the report before any decision or action is commenced."*
>
> Brown v. Lowe's Cos., 52 F. Supp. 3d 749, at *755 (W.D.N.C. 2014). KeyCite: one negative entry, "Declined to Extend by Wright v. Lincoln Prop…," not opened.

The Ninth Circuit's accuracy standard, from KeyCite on cases already in the research plan, is *Carvalho v. Equifax Information Services, LLC*, 629 F.3d 876 (9th Cir. 2010) (this opinion supersedes 615 F.3d 1217), standard pin 629 F.3d at 891, headnote HN21; yellow flag (declined to extend, *Rara v. Experian*, N.D. Cal. Mar. 20, 2017); later citing reference, not read: *Zimmerman v. Bank of America*, 833 F. Supp. 3d 1067 (N.D. Cal. 2026). *Shaw v. Experian Information Solutions, Inc.*, 891 F.3d 749 (9th Cir. 2018), holds that imprecision is not enough without a materially misleading effect (PIN HN14–15); yellow flag (declined to extend, *Mintun v. Equifax*, 535 F. Supp. 3d 988 (D. Nev. 2021)). KEYCITE Full text of *Carvalho* and *Shaw* was not reread in this session; use the pins after opening the opinions.

For willfulness, *Safeco Insurance Co. of America v. Burr*, 551 U.S. 47 (2007), holds that willfulness includes reckless disregard, and that an objectively reasonable reading of the statute is not reckless (PIN HN1). Yellow flag: declined to extend, *United States ex rel. Schutte v. SuperValu Inc.*, 143 S. Ct. 1391 (2023). KEYCITE

For Article III, *TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021), no flag: dissemination to third parties is concrete harm; undisclosed file alerts and future-risk theories are not (PIN HN36, 38, 41). Later citing references, not read: *Bohnak*, 79 F.4th 276; *Kelly v. RealPage*, 47 F.4th 202. KEYCITE The complaint's ¶ 11 already frames the accuracy injury as communication of materially misleading "criminal offenses" information to a prospective employer, "which bears a close relationship to the harm redressed by defamation." That is the right *TransUnion* structure. *Healy* and *Seyed-Ali* give it current Ninth Circuit and Central District support.

4. Adverse or cautionary authority, and how to address it

- *Shaw*: mere imprecision is not a § 1681e(b) inaccuracy. Address this by keeping ¶ 59's two-part allegation — the designation is patently incorrect (no alcohol-related criminal record) *and* materially misleading (it recasts concluded DMV licensing actions as criminal "offenses"). Do not rest on a loose or informal choice of words.
- *Safeco*: an objectively reasonable statutory reading defeats recklessness. Address this with HireRight's own report, which, as ¶¶ 26 and 60 allege, treated the same entries as licensing actions in the motor-vehicle section and found no alcohol-related criminal record in any jurisdiction searched. That contrast is the willfulness evidence, not a disagreement about an open question of law.
- Attribution of the label. If discovery shows a Hertz reviewer, not HireRight, wrote "[Criminal Information] Alcohols related offenses-Does not meet," Count 1 against HireRight narrows. Paragraph 46 should stay careful and fact-based. The research plan's search for cases treating a consumer reporting agency's adjudication grade as consumer-report information under § 1681e(b) did not produce a full-text opinion on that exact point. That goal remains open.
- Result-list cases that lean the other way, RESULT LIST ONLY, not to be cited yet: *Muha v. Experian*, 2022 WL 1223635 (C.D. Cal. Apr. 25, 2022) (synopsis: no standing under *TransUnion*); *Alexander v. Experian*, 2020 WL 2111462 (9th Cir. 2020) (synopsis: reasonable-consumer test for misleading, defense-leaning); *Juster v. Workday*, 617 F. Supp. 3d 1128 (N.D. Cal. 2022) (synopsis: standalone disclosure complied — more relevant to Count 3). Other HireRight captions appeared on result lists and were not opened: *Waters v. HireRight*, 2025 WL 4317687 (D.S.C.); *Lyons v. HireRight*, 2026 WL 1741709 (M.D. Tenn.); *Harris v. HireRight*, 2024 WL 4805375 (N.D. Tex.).

5. Suggested edits, by paragraph

- ¶ 11 and ¶ 62: add the *Seyed-Ali* "lost opportunity to contest before revocation" formulation, and cite *Healy* for circumstantial evidence of standing.
- ¶¶ 59–60: keep the "patently incorrect" and "materially misleading" pairing, to meet *Shaw*.
- ¶ 61: keep the alternative negligent claim under § 1681o, and frame willfulness in *Safeco* reckless-disregard terms, tied to HireRight's own motor-vehicle section.
- ¶ 46: leave the information-and-belief attribution in place; do not overclaim. After KeyCite checks, *Ridenour* and *Brown* may be added to a brief, and only then, with their flags disclosed.

B. Second Cause of Action — Penal Code § 290.46(j), against Hertz

Complaint ¶¶ 64–71. Prayer: actual damages; an additional amount not exceeding three times actual damages and not less than $250; attorney's fees; exemplary damages or, in the alternative, a civil penalty not exceeding $25,000; and preventive relief under (j)(4)(B).

1. Elements

The research plan's elements are: (1) information "disclosed pursuant to" § 290.46; (2) use; (3) for purposes relating to employment; (4) not to protect a person at risk, and not otherwise authorized. Soft spots identified in the plan: whether an NSOPW or other national-index result is information "disclosed pursuant to" the California statute, and the difference between "use" and mere review. The complaint's theory (¶¶ 29–32, 66) is that, for a California registrant, an NSOPW result is the Megan's Law Website's own record, retrieved in real time, so California is the disclosing entity and NSOPW is a conduit.

2. Current statute text (Westlaw)

California statutes current through Chapter 1040 of the 2026 Regular Session. The Westlaw display of § 290.46 was marked effective January 1, 2023, with no KeyCite flag and no pending legislation noted. Numbering on the current section: (j)(1) is the person-at-risk authorization; (j)(2) lists prohibited purposes, including (E) Employment. STATUTE TEXT

(j)(1). "A person is authorized to use information disclosed pursuant to this section only to protect a person at risk."

(j)(2). "Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited:" (A) Health insurance; (B) Insurance; (C) Loans; (D) Credit; (E) Employment; (F) Education, scholarships, or fellowships; (G) Housing or accommodations; (H) Benefits, privileges, or services provided by any business establishment.

(j)(3). "This section shall not affect authorized access to, or use of, information pursuant to, among other provisions, Sections 11105 and 11105.3 of this code, Section 8808 of the Family Code, Sections 777.5 and 14409.2 of the Financial Code, Sections 1522.01 and 1596.871 of the Health and Safety Code, and Section 432.7 of the Labor Code."

(j)(4)(A). "Any use of information disclosed pursuant to this section for purposes other than those provided by paragraph (1) or in violation of paragraph (2) shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."

(j)(4)(B). "Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the information available via an internet website established pursuant to this section in violation of paragraph (2), the Attorney General, any district attorney, or city attorney, or any person aggrieved by the misuse is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for the pattern or practice of misuse. The foregoing remedies shall be independent of any other remedies or procedures that may be available to an aggrieved party under other provisions of law, including Part 2 (commencing with Section 43) of Division 1 of the Civil Code."

Westlaw annotated text, session 2 (catalog-02), November 12, 2026. Credits on the Westlaw re-run (catalog-02c): added by Stats. 2017, ch. 541 (Senate Bill 384) § 10, effective January 1, 2018, operative January 1, 2022; amended by Stats. 2018, ch. 423 (Senate Bill 1494) § 58; Stats. 2021, ch. 615 (Assembly Bill 474) § 333 (operative January 1, 2023). This is an addition of the current section, not a simple renumbering of former subdivision (l) by Assembly Bill 1844. Official chaptered bills reviewed the same day (catalog-02b) are consistent: Assembly Bill 1844 kept the person-at-risk and remedy provisions in (l); Senate Bill 384, section 10, is the first official text in which they appear as (j), operative January 1, 2022. Westlaw Notes of Decisions (27 entries) listed, among others, *Doe v. California Department of Justice*, 173 Cal. App. 4th 1095 (2009), and *Mendoza*, 182 Cal. App. 4th 1644 (2010). Construction and application, from the first Westlaw pull: *Yohner v. California Department of Justice*, 237 Cal. App. 4th 1 (2015); construction with other laws: *Mendoza*; construction with federal law: *In re S.B.*, 222 Cal. App. 4th 612 (2013). Those Notes of Decisions cases, other than *Mendoza*, were not read in full in this session.

3. Supporting authority — and the authority that cuts against a claim on the screener

The opinions that were read in full on this statute are mostly adverse to a claim against a background-check company, and they are the reason Count 2 should stay pointed at Hertz.

> *Liability "should be limited to employers who 'use' information disclosed on the MLW as a basis for an employment decision."*
>
> Mendoza v. ADP Screening & Selection Services, 182 Cal. App. 4th 1644, at *1657 (2010). "MLW" is the Megan's Law Website. No KeyCite flag; zero negative citing references. Anti-SLAPP was granted to the screening company. Later citing references, not read: Cross v. Cooper, 127 Cal. Rptr. 3d 903 (2011); Towner v. County of Ventura, 277 Cal. Rptr. 3d 891 (2021).

> *"His cause of action, if any, lies against his prospective employer, and not SASS."*
>
> Mendoza, 182 Cal. App. 4th at *1658. "SASS" is the screening company in that case.

> *Agencies "are the gatherers and distributors of information, not the ultimate users of the information."*
>
> McGroarty v. American Background Information Services, 2009 WL 980417, at *3 (C.D. Cal. Apr. 8, 2009).

Those holdings are useful to the plaintiff, not only a threat, if Count 2 remains a claim against the employer. They confirm that the "user" is the employer who uses Megan's Law information as a basis for an employment decision — which is exactly what ¶¶ 47 and 67 allege against Hertz: selection of the registry product, adoption of rules that routed a California registry hit to eligibility review, personnel review for the purpose of deciding employment, and a preliminary rescission "[b]ased on a review of the results of [his] background report and Company's eligibility criteria." The prohibition was printed on the report Hertz reviewed (¶¶ 36, 50). Paragraph 51 alleges that the person-at-risk exception does not apply and that Hertz did not obtain the information through Penal Code § 11105 or § 11105.3 (the authorized-access provisions saved by (j)(3)).

Attorney General Opinion No. 05-301, 89 Ops. Cal. Att'y Gen. 85 (2006), 2006 WL 1144373 (Apr. 27, 2006) KEYCITE, has no flag. The KeyCite session notes a caution: the holding is about a Fair Employment and Housing Act housing protected class, not employment; the opinion recites the § 290.46 employment-use bar. The research plan's description of it as saying "(j) is unequivocal" should be checked against the actual text before the opinion is cited for an employment-use holding. It is cited by *McGroarty*.

4. Adverse authority, and how to address it

ADDRESS THESE AUTHORITIES IN THE COMPLAINT'S THEORY, NOT ONLY IN A LATER BRIEF

Mendoza and McGroarty. Do not plead a § 290.46 count against HireRight. Do not describe HireRight's transmission of registry results as the statutory "use." Describe Hertz's employment decision as the use.

Donaleski v. Wal-Mart Stores, 2009 WL 1296257 (E.D. Cal. May 8, 2009) KEYCITE — no flag, zero citing cases (two trial-court motions and two secondary sources were listed). No prohibited use was found where the decision followed an independent investigation and the employee's admissions, even though a registry result was the lead. Hertz is likely to say that the Santa Clara County court record (¶ 39), or the driving record, was an independent basis. Address this with: (a) the ten-day period in which Hertz held the motor-vehicle record and continued onboarding (¶¶ 25–28); (b) the Notice issued within eight hours of the completed report that first delivered the registry hits in finished form (¶¶ 40–41); (c) the Notice's word "including," which on its face is not exclusive (¶¶ 42, 48); (d) a clear statement that Count 2 targets use of information disclosed pursuant to § 290.46 — the Megan's Law Website information — and not the mere existence of a court file. Citing references were not pulled; that work is still open.

NSOPW as a "federal disclosure." No opinion read in this research holds that registry information retrieved through NSOPW remains "information disclosed pursuant to" a state Megan's Law statute. That was a stated goal of the research plan and is still open. The complaint's conduit theory (¶¶ 30–32) should stay factually precise and should not overclaim the case law. A result-list case, *Francis v. Forewarn*, 2026 WL 2607166 (N.D. Ill. Sept. 3, 2026) RESULT LIST ONLY, appeared under an NSOPW search and has not been read. Other result-list captions, also unread: *Doe v. Brown*, 177 Cal. App. 4th 408; *Doe v. California Department of Justice*, 173 Cal. App. 4th 1095; *McCallum v. Batista*, 2020 WL 1150273.

Supplemental-jurisdiction risk. The research plan flagged 28 U.S.C. § 1367(c)(1) (novel issue of state law) and possible certification under California Rules of Court, rule 8.548. The complaint independently pleads diversity jurisdiction in ¶ 10, which, if the amount and citizenship allegations hold, reduces the practical risk of a § 1367(c) declination of the state counts. HireRight's LLC citizenship is still pleaded on information and belief (¶ 7); the planned Rule 7.1 docket search was not done.

5. Suggested edits, by paragraph

- Count 2 caption and ¶¶ 47, 67: keep Hertz as the only defendant; adopt Mendoza's "as a basis for an employment decision" wording.
- ¶¶ 39, 48: add a short, careful passage distinguishing use of Megan's Law Website information from the existence of a court record, and restating the timing theory, so *Donaleski* is not met with silence.
- ¶¶ 31–32, 66: do not add a citation for the NSOPW-conduit theory that this research did not find. Leave the factual allegation; do not imply it is settled.
- Any accompanying memorandum: correct history language so it says the current section was added by Senate Bill 384, not renumbered by Assembly Bill 1844.
- ¶ 71 (pattern or practice, (j)(4)(B)): the Westlaw text confirms that "any person aggrieved by the misuse" may seek preventive relief. That standing language supports the injunction request already pleaded. The pattern-or-practice allegation remains on information and belief; no opinion was read that applies (j)(4)(B) in an employment-screening case.

C. Third Cause of Action — ICRAA standalone disclosure, against Hertz

Complaint ¶¶ 72–77. Prayer: actual damages or $10,000, whichever is greater, plus punitive damages, under Civil Code § 1786.50.

1. Elements and the complaint's facts

Civil Code § 1786.16(a)(2)(B) requires, before an investigative consumer report is procured for employment purposes, a clear and conspicuous written disclosure "in a document that consists solely of the disclosure." The complaint alleges that the only document the plaintiff signed combined the investigative-report disclosure with notices for five other States and a Los Angeles ordinance in two languages, misidentified the employer as "The Herz Corporation," and placed the California-specific disclosure — the only page listing a "National Sex Offender Registry" search — unsigned, on page eight, after the signature block, bound into the same twelve-page packet (¶¶ 21–23, 75). The signed pages, the complaint alleges, did not mention a sex-offender registry search (¶ 22). The offer letter's defined "Background Checks" also omitted that search (¶ 17). Soft spots in the research plan: Article III in federal court for a disclosure-format claim; whether page 8 was a separate electronic-signature screen; and whether a separate clean federal form would cure the defect.

2. Current statute text (Westlaw re-run)

Civil Code § 1786.50 (entire section, as confirmed on Westlaw and on LegInfo). "(a) An investigative consumer reporting agency or user of information that fails to comply with any requirement under this title with respect to an investigative consumer report is liable to the consumer who is the subject of the report in an amount equal to the sum of all the following:

"(1) Any actual damages sustained by the consumer as a result of the failure or, except in the case of class actions, ten thousand dollars ($10,000), whichever sum is greater.

"(2) In the case of any successful action to enforce any liability under this chapter, the costs of the action together with reasonable attorney's fees as determined by the court.

"(b) If the court determines that the violation was grossly negligent or willful, the court may, in addition, assess, and the consumer may recover, punitive damages.

"(c) Notwithstanding subdivision (a), an investigative consumer reporting agency or user of information that fails to comply with any requirement under this title with respect to an investigative consumer report shall not be liable to a consumer who is the subject of the report where the failure to comply results in a more favorable investigative consumer report than if there had not been a failure to comply."

Westlaw re-run, catalog-02c, current through Chapter 1040 of the 2026 Regular Session; official LegInfo text, catalog-02b (history line on the current section page: amended by Stats. 2003, ch. 146, § 2, effective January 1, 2004). Westlaw Notes of Decisions: *Cisneros v. U.D. Registry*, 39 Cal. App. 4th 548 (1995); *Yeh v. Barrington Pacific* (2026) 341 Cal. Rptr. 3d 311 (standing; judicial notice); *Bernuy v. Bridge Property Management* (2023) 306 Cal. Rptr. 3d 539 (limitations; sufficiency of allegations). Those Notes of Decisions cases were not re-read in full in the statute session, except insofar as *Yeh* and *Parsonage* were KeyCited or, for *Parsonage*, read in full later.

From the first Westlaw statute pull (catalog-02), before the document limit was reached: **§ 1786.2(c)**, effective January 1, 2014 (Stats. 2013, ch. 444 (SB 138) § 6), includes the wording "information on a consumer's character, general reputation, personal characteristics, or mode of living is obtained through any means…" (the session notes record that a full quote existed in a session report; only this excerpt was kept in the catalog). Eleven Notes of Decisions were not reviewed. **§ 1786.16(a)(2)(B)**, effective January 1, 2011 (Stats. 2010, ch. 481 (SB 909) § 1): "provides a clear and conspicuous disclosure in writing to the consumer at any time before the report is procured or caused to be made in a document that consists solely of the disclosure, that:" followed by items (i)–(vi), which were not transcribed into the catalog. Eight Notes of Decisions were not reviewed. Do not invent the (i)–(vi) list. STATUTE TEXT

3. Supporting authority

Parsonage v. Wal-Mart Associates, Inc., 118 Cal. App. 5th 399 (4th Dist. Div. 1, Feb. 4, 2026) (No. D083831), review denied April 29, 2026 FULL TEXT, reversed summary judgment. The court held that ICRAA standing is the violation itself; the $10,000 remedy is not tied to actual damages; and state courts are not bound by Article III. Later citing references, not read: *Askins v. CRST*, 345 Cal. Rptr. 3d 130 (2026); *Legacy Partners Tenancy Cases*, 2026 WL 2493845. No KeyCite flag.

> *"ICRAA's remedies provision does not add any additional standing requirement, such as a showing of actual damages or injury."*
>
> Parsonage, 118 Cal. App. 5th at *417.

> *"[T]he Legislature made clear the agency or user should be held liable regardless of whether the consumer suffers any actual damages."*
>
> Id. at *417. The purpose of notice, the court said, is "so the consumer may attempt to cure any errors." (at *415–16).

That last clause — notice so the consumer may cure errors — aligns with the complaint's allegation that the document the plaintiff signed did not disclose the registry search, and that Hertz then used the results against him (¶ 76). It also aligns with *Seyed-Ali* and with *Brown*'s statement of purpose, quoted under Count 1.

Yeh v. Barrington Pacific, 117 Cal. App. 5th 1303 (2026) (also cited in Notes of Decisions as 341 Cal. Rptr. 3d 311) KEYCITE: no flag on the document; review denied April 29, 2026. The KeyCite History diagram showed an unexplained red-flag tooltip, which should be rechecked. The KeyCite notes describe the holding as: ICRAA penalty without actual injury; no unfair-competition standing absent a loss. Later citing reference, not read: *Sosa v. CTM Apartment Services*, 2026 WL 2168680. Use *Yeh* for the ICRAA statutory penalty; do not assume it supplies UCL standing, and do not file on it until the unexplained tooltip is resolved.

Connor v. First Student, Inc., 5 Cal. 5th 1026 (2018) KEYCITE, no flag: ICRAA applies to character and noncredit checks even if the Consumer Credit Reporting Agencies Act also applies (PIN HN7–9). Later citing references, not read in this session: *Moran v. Screening Pros*, 943 F.3d 1175 (9th Cir. 2019); *Bernuy*, 306 Cal. Rptr. 3d 539. This supports treating the HireRight background report as an investigative consumer report under § 1786.2, as ¶ 73 already alleges (and as Hertz's own disclosure, according to that paragraph, acknowledges).

Gilberg v. California Check Cashing Stores, LLC, 913 F.3d 1169 (9th Cir. 2019) KEYCITE, is the leading Ninth Circuit standalone-disclosure decision for FCRA and ICRAA. Yellow flag: distinguished by *Beltran v. Waste Management*, E.D. Cal. May 21, 2025; nine negative citing references. The KeyCite notes: standalone rule for FCRA and ICRAA; extraneous material; not clear. PIN HN3. Later citing references, not read: *Walker v. Fred Meyer*, 953 F.3d 1082; *Snell v. G4S*, 424 F. Supp. 3d 892. Full text was not re-read in the nine-case session; open the opinion and read HN3 before quoting. The complaint's facts — a twelve-page packet mixing multi-state notices, a Los Angeles ordinance in two languages, and an unsigned California page after the signature — are the kind of "extraneous material" *Gilberg* addresses. Disclose the yellow flag if the case is cited.

Seyed-Ali, already discussed, is a 2025 Central District decision in which ICRAA was pleaded against HireRight's user (the employer) and survived a motion to dismiss, on facts of a revoked offer and a contested report. That is the Article III companion to *Parsonage*.

4. Adverse or cautionary authority

- Article III. *Parsonage* expressly notes that state courts are not bound by Article III. A federal complaint that cites only *Parsonage* for standing on Count 3 is exposed. Pair it with *Seyed-Ali* and with ¶ 76's allegation that the undisclosed registry search was actually used against the plaintiff. *TransUnion* is not satisfied by a bare format violation with no downstream use or dissemination-related harm.
- *Juster v. Workday*, 617 F. Supp. 3d 1128 (N.D. Cal. 2022) **RESULT LIST ONLY**: synopsis says a standalone disclosure complied. Contrast case; read it before addressing it.
- Section 1786.50(c) bars liability where the failure produced a more favorable report. That is not the allegation here — the complaint says the defect hid a registry search that was then used against the plaintiff — but a defendant may argue the point. No need to plead around a defense that does not fit; just do not ignore the subsection if Hertz raises it.

5. Suggested edits, by paragraph

- ¶ 11 and ¶ 76: add *Seyed-Ali*'s lost-opportunity injury, and state that *Parsonage* supplies the state remedies rule (the $10,000 floor without a further injury showing), not federal standing.
- ¶ 73: *Connor* supports ICRAA's application to this kind of report; cite it after opening the opinion for the HN7–9 pins.
- ¶ 75: the "Herz" misidentification and the unsigned page-eight California disclosure after the signature remain the cleanest factual hooks for the "document that consists solely of the disclosure" requirement. Keep them prominent.
- ¶ 77: the $10,000 floor and punitive damages for a grossly negligent or willful violation are confirmed by the current text. *Parsonage* supports the floor. The "settled since at least 2019" willfulness allegation should be tied to *Gilberg*, with its yellow flag noted in any brief.

D. Fourth Cause of Action — Labor Code § 432.7, against Hertz (alternative)

Complaint ¶¶ 78–83, pleaded in the alternative to Count 2 under Federal Rule of Civil Procedure 8(d)(2)–(3), "to the extent Hertz contends that its preliminary decision rested on the 'Alcohols related offenses' identified in the Notice" (¶ 79). Prayer: actual damages or $200, whichever is greater, and any enhanced amount for an intentional violation, under § 432.7(c).

1. Elements and the complaint's theory

Section 432.7(a)(1) prohibits an employer from seeking, from any source, or utilizing as a factor in any condition of employment, including hiring, a record of arrest or detention that did not result in conviction (and certain diversion, dismissed, and sealed-conviction records). The complaint's theory is that the only alcohol-related information in the report is a DMV chemical-test-refusal entry; that the chemical-test obligation arises only for a person who has been lawfully arrested (Vehicle Code §§ 23612(a)(1)(A), 13353); that the refusal action followed an arrest that did not result in a conviction; and that the entry is therefore a "record of that arrest" which Hertz labeled "[Criminal Information]" and used as a factor in rescinding the offer (¶¶ 27, 80–81). Paragraph 82 alleges that no job requirement justified the use: the Class C license was valid, the refusal suspension had ended with reinstatement before the offer, and a commercial-vehicle disqualification had cleared and concerned a license class the Manager Trainee po-

sition did not require. The research plan flagged as a soft spot whether a DMV refusal entry is a "record of arrest or detention that did not result in conviction," and whether a driver-required job justifies reviewing it. This research did not produce a full-text opinion deciding that exact DMV question.

2. Current statute text (Westlaw re-run)

Westlaw and LegInfo agree on the operative wording. Last amended by Assembly Bill 1480, Stats. 2021, chapter 158 (Westlaw credits; LegInfo history line: amended by Stats. 2021, ch. 158, § 1 (AB 1480), effective January 1, 2022). Current through Chapter 1040 of the 2026 Regular Session.

§ 432.7(a)(1) (official text, confirmed as quoted on the Westlaw re-run). "An employer, whether a public agency or private individual or corporation, shall not ask an applicant for employment to disclose, through any written form or verbally, information concerning an arrest or detention that did not result in conviction, or information concerning a referral to, and participation in, any pretrial or posttrial diversion program, or concerning a conviction that has been judicially dismissed or ordered sealed pursuant to law, including, but not limited to, Sections 1203.4, 1203.4a, 1203.425, 1203.45, and 1210.1 of the Penal Code. An employer also shall not seek from any source whatsoever, or utilize, as a factor in determining any condition of employment including hiring, promotion, termination, or any apprenticeship training program or any other training program leading to employment, any record of arrest or detention that did not result in conviction, or any record regarding a referral to, and participation in, any pretrial or posttrial diversion program, or concerning a conviction that has been judicially dismissed or ordered sealed pursuant to law, including, but not limited to, Sections 1203.4, 1203.4a, 1203.425, 1203.45, and 1210.1 of the Penal Code. This section shall not prevent an employer from asking an employee or applicant for employment about an arrest for which the employee or applicant is out on bail or on their own recognizance pending trial."

§ 432.7(c). "If a person violates this section, or Article 6 (commencing with Section 11140) of Chapter 1 of Title 1 of Part 4 of the Penal Code, the applicant may bring an action to recover from that person actual damages or two hundred dollars ($200), whichever is greater, plus costs, and reasonable attorney's fees. An intentional violation of this section shall entitle the applicant to treble actual damages, or five hundred dollars ($500), whichever is greater, plus costs, and reasonable attorney's fees. An intentional violation of this section is a misdemeanor punishable by a fine not to exceed five hundred dollars ($500)."

Catalog-02c (Westlaw); catalog-02b (LegInfo). Westlaw Notes of Decisions (51 cases) listed, among others: *Saberin v. Alation, Inc.* (Cal. Ct. App. 1st Dist. 2026) 2026 WL 2198953 (full-text reporter cite: 122 Cal. App. 5th 165); *Doe v. DMV* (2024) 322 Cal. Rptr. 3d 424; *Garcia-Brower v. Premier Automotive* (2020) 269 Cal. Rptr. 3d 856; *Tilkey v. Allstate* (2020) 261 Cal. Rptr. 3d 435 (vacated — do not rely on it). Other than *Saberin* and *A.S.*, these Notes of Decisions cases were not read in full.

Vehicle Code provisions cited in ¶ 27, as re-run on Westlaw: § 23612(a)(1)(A) and (D) were quoted (a refusal leads to an administrative suspension); § 13353(a) was quoted (administrative suspension of one year on a refusal; effective 30 days after notice). Full official text of § 13353(a) is in catalog-02b. Westlaw Notes of Decisions on § 23612 listed *People v. Superior Court (Feghhi)* (2026) 344 Cal. Rptr. 3d 374; *Kazelka v. DMV* (2025) 331 Cal. Rptr. 3d 251; *People v. Alvarez* (2023) 316 Cal. Rptr. 3d 705; *Decker v. DMV*, 6 Cal. 3d 903; *Giomi v. Director of DMV*, 15 Cal. App. 3d 905 — none of them read in this session, and none captured as deciding the § 432.7 "record of arrest" question. STATUTE TEXT

3. Supporting authority

A.S. v. Los Angeles Unified School District, 123 Cal. App. 5th 519 (2d Dist. Div. 8, Sept. 22, 2026) (Nos. B335692 and B335732) FULL TEXT, held that § 432.7(a)(1) bars using expunged convictions, and that a statutory exception (subdivision (m)) permits seeking a record, not using it.

> *"Employers cannot ask job applicants to disclose dismissed convictions and cannot 'utilize' records of dismissed convictions."*
>
> A.S. v. LAUSD, 123 Cal. App. 5th at *526.

> *"[T]he Basic Prohibition closed the gate on the District's use of the expunged misdemeanors."*
>
> Id. at *525. The session notes also record the holding that being allowed to ask about a conviction does not mean being allowed to reject someone over it.

Use this case for the "utilize" verb and for the seeking-versus-using distinction. Do not describe it as a DMV-refusal decision. The honest analog is: if the DMV entry is a "record of arrest or detention that did not result in conviction," then A.S. supports the proposition that Hertz may not utilize it as a factor in hiring, even if Hertz was allowed to receive a driving record.

Faria v. San Jacinto Unified School District, 50 Cal. App. 4th 1939 (1996) KEYCITE : citation verified; yellow flag (declined to follow, *Harris v. Vector Marketing*, N.D. Cal. May 20, 2010). The KeyCite notes: § 432.7(c) statutory and treble damages, plus fees, are for applicants; employees recover actual damages. The complaint's plaintiff had accepted an offer and had not started work (¶¶ 20, 54). That is an applicant posture, and it should be kept explicit so the $200 / $500 / treble remedies in (c) — confirmed by the current text, including the words "intentional violation," "treble," and "$500" — are the remedies being sought.

4. Adverse authority — Saberin, and how to address it

Saberin v. Alation, Inc., 122 Cal. App. 5th 165 (1st Dist. 2026) (Westlaw Notes of Decisions also list 2026 WL 2198953; the result-list entry gave the date as July 30, 2026, 1st Dist. Div. 5) FULL TEXT , held that § 432.7 and Government Code § 12952 apply to a worker located outside California only with a sufficient California connection. The unlawful conduct is the decision itself. The session notes flag an open question about shuttling decisionmakers out of state.

> *"[T]he unlawful conduct at issue must have a sufficient connection to California."*
>
> Saberin, 122 Cal. App. 5th at *179.

> *"The unlawful conduct under Section 12952 and Labor Code section 432.7 is the termination decision itself."*
>
> Id. at *180.

SABERIN AND PARAGRAPH 24 — DO NOT LEAVE THIS UNADDRESSED

The plaintiff lives in California, interviewed in San Jose, and was offered a Palo Alto job (¶¶ 5, 15–16). Those facts help. They may not be enough if Hertz proves that "the termination decision itself" was made in Florida. Paragraph 24 already alleges that the HireRight order was requested by Kesha Nedio-Casey, Hertz Pre Employment (Field), Estero, Florida. A defense reading of *Saberin* will start there. The complaint should plead every fact that is true and known about where the November 2 preliminary decision was made — whose screens, which office, which managers — and should not assume that a California job automatically supplies the statutory connection. The session notes on *Saberin* expressly leave open the problem of shuttling decisionmakers out of state. If those facts are peculiarly in Hertz's possession, information-and-belief pleading, with that explanation, is the form ¶ 49 already uses on a related point.

The "record of arrest" theory itself remains a soft spot. No full-text case in this research holds that a DMV chemical-test-refusal entry is, or is not, a § 432.7 "record of arrest or detention that did not result in conviction." Vehicle Code text supports the complaint's premise that the chemical-test obligation is tied to a lawful arrest, but that is a statutory inference, not a decided § 432.7 holding. Count 4 is already pleaded in the alternative. Keep it that way, and do not overstate the case law.

5. Suggested edits, by paragraph

- Near Count 4, and in the facts: add a decision-location paragraph answering *Saberin* (edit 2 in the executive summary).
- ¶¶ 80–82: add *A.S.* for "utilize" and for seeking versus using, with a candid factual distinction.
- ¶¶ 54, 83: keep applicant status explicit for the (c) remedies, and cite *Faria* with its yellow flag if it is used.
- ¶ 81: the "record of that arrest" sentence is the element most likely to be attacked. Keep the Vehicle Code citations; do not add a case this research did not find.

E. Fifth Cause of Action — Business and Professions Code §§ 16600, 16600.1, and 16600.5, against Hertz

Complaint ¶¶ 84–88, with a request for declaratory relief under 28 U.S.C. §§ 2201–2202. The offer letter, as quoted in ¶ 19, states: "It is a fundamental term and condition of your employment that you must execute and deliver to the undersigned the below details regarding Employee Confidentiality & Non-Competition."

1. Elements and soft spots

The research plan's soft spots were Article III and ripeness for a pre-enforcement challenge by a prospective employee, and whether an offer term requiring a non-competition agreement is itself a void provision. Paragraph 88 already alleges a present controversy: the plaintiff cannot take the position he accepted without submitting to a restraint California declares void.

2. Current statute text (Westlaw re-run)

Current through Chapter 1040 of the 2026 Regular Session. Sections 16600 and 16600.1 as amended or added by Assembly Bill 1076, Stats. 2023, chapter 828, effective January 1, 2024. Section 16600.5 added by Senate Bill 699, Stats. 2023, chapter 157, effective January 1, 2024. Westlaw reported no Notes of Decisions on §§ 16600.1 and 16600.5.

§ 16600(a). "Except as provided in this chapter, every contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void."

§ 16600(b)(1). "This section shall be read broadly, in accordance with *Edwards v. Arthur Andersen LLP* (2008) 44 Cal.4th 937, to void the application of any noncompete agreement in an employment context, or any noncompete clause in an employment contract, no matter how narrowly tailored, that does not satisfy an exception in this chapter." Subdivision (b)(2) states that this subdivision "does not constitute a change in, but is declaratory of, existing law."

§ 16600(c) — new language to add to ¶ 85. "This section shall not be limited to contracts where the person being restrained from engaging in a lawful profession, trade, or business is a party to the contract."

§ 16600.1(a). "It shall be unlawful to include a noncompete clause in an employment contract, or to require an employee to enter a noncompete agreement, that does not satisfy an exception in this chapter." Subdivision (c) provides that a violation "constitutes an act of unfair competition within the meaning of Chapter 5 (commencing with Section 17200)."

§ 16600.5(c). "An employer shall not enter into a contract with an employee or prospective employee that includes a provision that is void under this chapter."

§ 16600.5(e)(1). "An employee, former employee, or prospective employee may bring a private action to enforce this chapter for injunctive relief or the recovery of actual damages, or both."

§ 16600.5(e)(2). "In addition to the remedies described in paragraph (1), a prevailing employee, former employee, or prospective employee in an action based on a violation of this chapter shall be entitled to recover reasonable attorney's fees and costs."

Official LegInfo text, catalog-02b, confirmed on the Westlaw re-run, catalog-02c. Westlaw Notes of Decisions on § 16600 listed, among others, and not read in this session: *Hill Medical v. Wycoff*, 86 Cal. App. 4th 895; *IBM v. Bajorek*, 191 F.3d 1033 (9th Cir.); *Meta v. BrandTotal*, 605 F. Supp. 3d 1218 (N.D. Cal. 2022); *Latona v. Aetna*, 82 F. Supp. 2d 1089. Westlaw's digest note on (b)(1) recorded that it is to be "read broadly per Edwards 44 Cal.4th 937."

3. Supporting authority

Edwards v. Arthur Andersen LLP, 44 Cal. 4th 937 (2008) KEYCITE, no flag: there is no narrow-restraint exception to § 16600. Later citing references, not read: *AMN Healthcare*, 239 Cal. Rptr. 3d 577; *Samuelian*, 324 Cal. Rptr. 3d 596 (2024). The 2024 statute now writes the *Edwards* broad reading into § 16600(b)(1) itself. Full text was not re-read in the nine-case session.

The statutory text of § 16600.5(e) is itself the strongest authority for a prospective employee's private action. That is what the complaint already relies on in ¶ 85. The research plan asked for a decision allowing a prospective employee's claim based on an offer-letter noncompete term. This session did not produce one that was read in full. Result-list captions, RESULT LIST ONLY, not to be cited until read: *Mitchell v. Continental Casualty*, 2025 WL 3443248 (N.D. Cal.); *Horton v. Takeda*, 2025 WL 3753527 (Cal. Ct. App.); *NFP v. Alliant*, 2024 WL 4818801 (C.D. Cal.).

4. Adverse issues, and how to address them

- Ripeness and Article III. Paragraph 88's "cannot take the position without submitting to a restraint" formulation is the right structure. Section 16600.5(e) expressly names a "prospective employee." The offer was accepted (¶ 20). That is stronger than a challenge to a covenant that was never presented. No full-text case in this research decides the point against the plaintiff, and none decides it for him either.
- Do not cite the unread result-list cases. If a brief is later written, those three captions should be read first; one or more may cut the other way.

5. Suggested edits, by paragraph

- ¶ 85: quote § 16600(c) (the section is not limited to contracts where the restrained person is a party), and keep the existing accurate statement of § 16600.5(e).
- ¶¶ 86–88: keep the offer-letter quotation and the prospective-employee identity. They are the facts the 2024 statute is written around.
- Do not add a case citation for a § 16600.5 offer-letter decision that this research did not read.

III. KeyCite and status table

The following statuses were taken from Westlaw KeyCite on November 12, 2026, in Patron Access at Hillsborough County (catalog-01), with two additional KeyCite observations from the full-text session (catalog-04) on *Ridenour* and *Brown*. KeyCite Alerts are not available in Patron Access. Later citing cases listed in the KeyCite display were not read in full unless this memorandum says so. A yellow flag does not mean the case cannot be used; it means the flag and the citing decision should be opened and disclosed if the case is cited.

Table 2. KeyCite status of authorities in the research plan and of the opinions read in full

AUTHORITY	FLAG / STATUS	NOTES, LATER TREATMENT, AND WHAT REMAINS UNCHECKED
Mendoza v. ADP Screening, 182 Cal. App. 4th 1644 (2010)	No flag; 0 negative	Screening-company republication is not "use"; liability is on the employer who uses the information in an employment decision; anti-SLAPP granted to the screener. Later: *Cross v. Cooper*, 127 Cal. Rptr. 3d 903 (2011); *Towner v. County of Ventura*, 277 Cal. Rptr. 3d 891 (2021). Full text read.
Donaleski v. Wal-Mart, 2009 WL 1296257 (E.D. Cal. May 8, 2009)	No flag; 0 negative	No citing cases (two trial motions, two secondary sources). No prohibited use where the decision followed an independent investigation and employee admissions, despite a registry lead. Full opinion not re-read in the nine-case session; citing references not pulled (Part 6, open).
Gilberg v. Cal. Check Cashing Stores, 913 F.3d 1169 (9th Cir. 2019)	Yellow; 9 negative	Distinguished by *Beltran v. Waste Management*, E.D. Cal. May 21, 2025. Standalone rule, FCRA and ICRAA; extraneous material; not clear. PIN HN3. Later: *Walker v. Fred Meyer*, 953 F.3d 1082; *Snell v. G4S*, 424 F. Supp. 3d 892. Full text not re-read in this session.
Parsonage v. Wal-Mart Associates, 118 Cal. App. 5th 399 (2026)	No flag; review denied Apr. 29, 2026	ICRAA statutory remedy without a further concrete-injury showing. Later: *Askins v. CRST*, 345 Cal. Rptr. 3d 130 (2026); *Legacy Partners Tenancy Cases*, 2026 WL 2493845. Full text read.
Yeh v. Barrington Pacific, 117 Cal. App. 5th 1303 (2026)	No flag on the document; review denied Apr. 29, 2026	Unexplained red-flag tooltip on the History diagram — **RECHECK**. ICRAA penalty without actual injury; no UCL standing absent a loss. Later: *Sosa v. CTM Apartment Services*, 2026 WL 2168680. Full text not re-read in the nine-case session.
McInerney v. Regents, 124 Cal. App. 5th 19 (2026)	No flag; petition for review filed Oct. 28, 2026 (pending)	Fair Chance Act theories insufficient; court or jury cannot second-guess job-relatedness; damages for a missed five-day period require harm. Zero citing references. Not a pleaded claim in this complaint; relevant if Hertz's five-day notice language (¶ 44) becomes a damages theory. Full text not read in the nine-case session.
TransUnion LLC v. Ramirez, 594 U.S. 413 (2021)	No flag	Dissemination to third parties is concrete harm; undisclosed file alerts and future-risk theories are not. PIN HN36, 38, 41. Later: *Bohnak*, 79 F.4th 276; *Kelly v. RealPage*, 47 F.4th 202. Full text not re-read in this session.
Carvalho v. Equifax, 629 F.3d 876 (9th Cir. 2010)	Yellow	Declined to extend, *Rara v. Experian*, N.D. Cal. Mar. 20, 2017. Supersedes 615 F.3d 1217. Standard PIN 629 F.3d at 891; HN21. Later: *Zimmerman v. Bank of America*, 833 F. Supp. 3d 1067 (N.D. Cal. 2026). Full text not re-read.
Shaw v. Experian, 891 F.3d 749 (9th Cir. 2018)	Yellow	Declined to extend, *Mintun v. Equifax*, 535 F. Supp. 3d 988 (D. Nev. 2021). Imprecision is not enough without a materially misleading effect. PIN HN14–15. Full text not re-read.

AUTHORITY	FLAG / STATUS	NOTES, LATER TREATMENT, AND WHAT REMAINS UNCHECKED
Safeco Insurance Co. v. Burr, 551 U.S. 47 (2007)	Yellow	Declined to extend, *United States ex rel. Schutte v. SuperValu*, 143 S. Ct. 1391 (2023). Willfulness includes reckless disregard; an objectively reasonable reading is not reckless. PIN HN1. Full text not re-read.
Park v. Board of Trustees of CSU, 2 Cal. 5th 1057 (2017)	Yellow	Declined to extend, *Davis v. Purple Mountain Empire X*, Cal. Ct. App. Jan. 19, 2022. A claim does not arise from protected activity merely because a decision was communicated through speech. Relevant to a possible anti-SLAPP motion; Part 6 anti-SLAPP research is still open. Full text not re-read.
Connor v. First Student, 5 Cal. 5th 1026 (2018)	No flag	ICRAA applies to character and non-credit checks even if the CCRAA also applies. PIN HN7–9. Later: *Moran v. Screening Pros*, 943 F.3d 1175 (9th Cir. 2019); *Bernuy*, 306 Cal. Rptr. 3d 539. Full text not re-read.
Edwards v. Arthur Andersen, 44 Cal. 4th 937 (2008)	No flag	No narrow-restraint exception. Later: *AMN Healthcare*, 239 Cal. Rptr. 3d 577; *Samuelian*, 324 Cal. Rptr. 3d 596 (2024). Now written into § 16600(b)(1). Full text not re-read.
Soo Park v. Thompson, 851 F.3d 910 (9th Cir. 2017)	Yellow	Called into doubt, *Sims v. Opportunity Financial*, N.D. Cal. Apr. 13, 2021. Information-and-belief pleading is acceptable when facts are peculiarly in the defendant's possession. PIN HN31. Full text not re-read.
Polo v. Innoventions International, 833 F.3d 1193 (9th Cir. 2016)	Yellow	Declined to extend, *Modiri v. Barclays*, N.D. Cal. July 17, 2026. The research plan treats this as a remand-versus-dismissal decision, applicable to removal, not to an original federal filing. Full text not re-read.
Faria v. San Jacinto Unified School District, 50 Cal. App. 4th 1939 (1996)	Yellow; cite verified	Declined to follow, *Harris v. Vector Marketing*, N.D. Cal. May 20, 2010. Section 432.7(c) statutory and treble damages, plus fees, for applicants; employees recover actual damages. Full text not re-read.
Attorney General Opinion No. 05-301, 89 Ops. Cal. Att'y Gen. 85 (2006), 2006 WL 1144373	No flag	The holding is about a FEHA housing protected class, not employment; the opinion recites the § 290.46 employment-use bar. The plan's use of this opinion as saying "(j) is unequivocal" should be checked against the actual text. Cited by *McGroarty*. Full text not re-read in this session.
Ridenour v. Multi-Color Corp., 147 F. Supp. 3d 452 (E.D. Va. 2015)	4 negative entries	UNCHECKED The four negative KeyCite entries were noted in the full-text session and were not opened. Do not cite until they are.
Brown v. Lowe's Cos., 52 F. Supp. 3d 749 (W.D.N.C. 2014)	1 negative	UNCHECKED "Declined to Extend by Wright v. Lincoln Prop…" — the remainder of the citing title and the decision itself were not opened.
Seyed-Ali, 2025 WL 2659234; *Healy*, 164 F.4th 701; *A.S.*, 123 Cal. App. 5th 519; *Saberin*, 122 Cal. App. 5th 165; *McGroarty*, 2009 WL 980417	Not KeyCited as a group in Session 1	Full text of each was read in the later session. A formal KeyCite pass on these five was not recorded in catalog-01. Run KeyCite on them before filing.
Cal. Penal Code § 290.46	No flag or pending legislation noted on Westlaw	Display marked effective January 1, 2023; current through Chapter 1040 of the 2026 Regular Session.

IV. Table of authorities, with verification level

Every authority that appears in the session catalogs is listed below. "Full text" means the opinion, or the quoted passage, was read on Westlaw on November 12, 2026. "Statute text" means the operative wording was confirmed on the Westlaw re-run (and, for quotations, aligned with official LegInfo or GovInfo text). "KeyCite only" means status and a short holding were taken from the KeyCite display, and the opinion

was not re-read in the nine-case session. “Result list only” means the name, citation, or synopsis came from a Westlaw result list after the document limit blocked full text; those authorities must not be cited until the opinion is read. “Notes of Decisions only” means the case appeared on a Westlaw annotated-statute Notes of Decisions list and was not opened. Nothing in this table is a fabricated citation.

Table 3. All authorities from the Westlaw sessions and official-statute pull

AUTHORITY	VERIFICATION LEVEL	ROLE IN THIS MEMORANDUM
Seyed-Ali v. HireRight, LLC, 2025 WL 2659234 (C.D. Cal. Aug. 15, 2025) (No. CV 25-3755 PA)	FULL TEXT	Closest analog. MTD denied; Art. III injury is the lost chance to contest before revocation; ICRAA and UCL pleaded. Quote at *5.
Parsonage v. Wal-Mart Associates, Inc., 118 Cal. App. 5th 399 (4th Dist. Div. 1, Feb. 4, 2026) (No. D083831), review denied Apr. 29, 2026	FULL TEXT + KEYCITE	ICRAA remedies and state standing; $10,000 floor not tied to actual damages. Quotes at *417, *415–16. Pair with *Seyed-Ali* for Art. III.
A.S. v. Los Angeles Unified School District, 123 Cal. App. 5th 519 (2d Dist. Div. 8, Sept. 22, 2026) (Nos. B335692, B335732)	FULL TEXT	§ 432.7: cannot “utilize” dismissed convictions; seeking is not using. Quotes at *525, *526. Facts are expunged misdemeanors, not a DMV refusal.
Saberin v. Alation, Inc., 122 Cal. App. 5th 165 (1st Dist. 2026) (also 2026 WL 2198953)	FULL TEXT	§ 432.7 turns on a sufficient California connection; the unlawful conduct is “the termination decision itself.” Quotes at *179, *180. Geographic risk.
Healy v. Milliman, Inc., 164 F.4th 701 (9th Cir. Jan. 9, 2026) (No. 24-3327) (also 2026 WL 71863)	FULL TEXT	§ 1681e(b) standing by direct or circumstantial evidence. Quote at approximately *709. This is the “164 F.4th 701” case a result list at first left unnamed.
Mendoza v. ADP Screening & Selection Services, 182 Cal. App. 4th 1644 (2010)	FULL TEXT + KEYCITE	§ 290.46 “use” is the employer’s employment decision, not the screener’s republication. Quotes at *1657, *1658. Aim Count 2 at Hertz only.
McGroarty v. American Background Information Services, 2009 WL 980417 (C.D. Cal. Apr. 8, 2009)	FULL TEXT	Agencies are “gatherers and distributors,” “not the ultimate users.” Quote at *3.
Ridenour v. Multi-Color Corp., 147 F. Supp. 3d 452 (E.D. Va. 2015) (also 2015 WL 7769469)	FULL TEXT + 4 FLAGS UNCHECKED	Traffic offense reported as a crime; §§ 1681e(b), 1681k, 1681b(b)(3) survived; willfulness survived for e(b) and k. No quote captured. Check flags before citing.
Brown v. Lowe’s Cos., 52 F. Supp. 3d 749 (W.D.N.C. 2014)	FULL TEXT + 1 FLAG UNCHECKED	MTDs denied; omitted reversal of a felony. Quote at *755 (correct the report before any decision). “Declined to Extend by Wright v. Lincoln Prop…,” not opened.
Donaleski v. Wal-Mart Stores, 2009 WL 1296257 (E.D. Cal. May 8, 2009)	KEYCITE	Independent-investigation defense. Citing references not pulled. Full text not in the nine-case set.
Gilberg v. California Check Cashing Stores, LLC, 913 F.3d 1169 (9th Cir. 2019)	KEYCITE	Standalone FCRA and ICRAA disclosure rule. Yellow; PIN HN3. Open before quoting.
Yeh v. Barrington Pacific, 117 Cal. App. 5th 1303 (2026), 341 Cal. Rptr. 3d 311	KEYCITE + RECHECK TOOLTIP	ICRAA penalty without actual injury; no UCL standing without a loss. Review denied Apr. 29, 2026.
McInerney v. Regents, 124 Cal. App. 5th 19 (2026)	KEYCITE	Petition for review filed Oct. 28, 2026, pending. Fair Chance; five-day-period damages require harm. Not pleaded.

AUTHORITY	VERIFICATION LEVEL	ROLE IN THIS MEMORANDUM
TransUnion LLC v. Ramirez, 594 U.S. 413 (2021)	KEYCITE	Art. III: dissemination is concrete; undisclosed alerts and future risk are not. PIN HN36, 38, 41.
Carvalho v. Equifax Information Services, LLC, 629 F.3d 876 (9th Cir. 2010)	KEYCITE	Ninth Circuit accuracy standard, 629 F.3d at 891; HN21. Yellow. Supersedes 615 F.3d 1217.
Shaw v. Experian Information Solutions, Inc., 891 F.3d 749 (9th Cir. 2018)	KEYCITE	Imprecision is not enough without a materially misleading effect. PIN HN14–15. Yellow.
Safeco Insurance Co. of America v. Burr, 551 U.S. 47 (2007)	KEYCITE	Willfulness includes reckless disregard; objectively reasonable reading is not reckless. PIN HN1. Yellow.
Connor v. First Student, Inc., 5 Cal. 5th 1026 (2018)	KEYCITE	ICRAA covers character and non-credit checks even if CCRAA also applies. PIN HN7–9.
Edwards v. Arthur Andersen LLP, 44 Cal. 4th 937 (2008)	KEYCITE	No narrow-restraint exception; now in § 16600(b)(1).
Park v. Board of Trustees of the California State University, 2 Cal. 5th 1057 (2017)	KEYCITE	Anti-SLAPP does not reach a hiring decision merely because it was communicated through speech. Yellow. Part 6 still open.
Soo Park v. Thompson, 851 F.3d 910 (9th Cir. 2017)	KEYCITE	Information-and-belief pleading when facts are in the defendant's possession. PIN HN31. Yellow (called into doubt).
Polo v. Innoventions International, LLC, 833 F.3d 1193 (9th Cir. 2016)	KEYCITE	Remand versus dismissal; plan treats as not applicable to an original federal filing. Yellow.
Faria v. San Jacinto Unified School District, 50 Cal. App. 4th 1939 (1996)	KEYCITE	§ 432.7(c) statutory, treble, and fee remedies for applicants. Yellow (declined to follow in *Harris*).
89 Ops. Cal. Att'y Gen. 85 (2006) (Opinion No. 05-301), 2006 WL 1144373	KEYCITE	Housing FEHA holding; recites the § 290.46 employment-use bar. Check the actual text before citing for employment use.
15 U.S.C. §§ 1681a(d)(1), 1681e(b), 1681n(a), 1681o(a)	STATUTE TEXT	Westlaw re-run, current through Pub. L. 119-138; official wording from GovInfo United States Code, 2023 edition.
Cal. Civ. Code §§ 1786.2(c), 1786.16(a)(2)(B), 1786.50	STATUTE TEXT	§ 1786.50 quoted in full. §§ 1786.2 and 1786.16 are partial Westlaw excerpts; (i)–(vi) of 1786.16 and Notes of Decisions (11 and 8 entries) were not reviewed.
Cal. Penal Code § 290.46(j)(1)–(4)	STATUTE TEXT	Westlaw annotated text of (j); credits: added by SB 384 (Stats. 2017, ch. 541), not a simple AB 1844 renumbering. Current through Ch. 1040 of the 2026 Regular Session.
Cal. Lab. Code § 432.7(a)(1), (c)	STATUTE TEXT	Quoted in full. (c) contains "intentional violation," "treble," and "$500." Last amended by AB 1480, Stats. 2021, ch. 158.
Cal. Veh. Code §§ 23612(a)(1)(A), (D), 13353(a)	STATUTE TEXT	Westlaw: refusal leads to administrative suspension; § 13353(a), one-year suspension, 30 days after notice. Full official § 13353(a) text in catalog-02b.

AUTHORITY	VERIFICATION LEVEL	ROLE IN THIS MEMORANDUM
Cal. Bus. & Prof. Code §§ 16600(a)–(c), 16600.1, 16600.5	STATUTE TEXT	AB 1076 (16600, 16600.1) and SB 699 (16600.5), effective Jan. 1, 2024. (c) is new "not limited to contracts where the restrained person is a party" language. 16600.5(e) prospective-employee private action confirmed. No Notes of Decisions on 16600.1 or 16600.5.
Muha v. Experian, 2022 WL 1223635 (C.D. Cal. Apr. 25, 2022)	RESULT LIST ONLY	Synopsis: no standing under *TransUnion*. Do not cite yet.
Bates v. McMahon, 2026 WL 3269951 (N.D. Ga. Oct. 27, 2026); *Damond v. Experian*, 2026 WL 2853935 (E.D. La. Sept. 23, 2026); *Burton v. St. Mary's Healthcare*, 2026 WL 2838174 (N.D.N.Y. Sept. 22, 2026)	RESULT LIST ONLY	Appeared on a § 1681e(b) / *TransUnion* / dissemination search. *Damond* synopsis: pro se, dismissed. Do not cite yet.
Juster v. Workday, 617 F. Supp. 3d 1128 (N.D. Cal. 2022)	RESULT LIST ONLY	Synopsis: standalone disclosure complied (contrast for Count 3).
Ramirez v. Trans Union, 2014 WL 3734525 (N.D. Cal. 2014)	RESULT LIST ONLY	Synopsis: class certification (OFAC matches). District-court decision later overtaken, for standing purposes, by the Supreme Court's 2021 decision. Do not cite from the synopsis.
Alexander v. Experian, 2020 WL 2111462 (9th Cir. 2020)	RESULT LIST ONLY	Synopsis: reasonable-consumer test for misleading (defense-leaning).
Waters v. HireRight, 2025 WL 4317687 (D.S.C.); *Lyons v. HireRight*, 2026 WL 1741709 (M.D. Tenn.); *Harris v. HireRight*, 2024 WL 4805375 (N.D. Tex.); *Gregory v. Myrtle Beach PD*, 2026 WL 3319104 (D.S.C.); *Nyhus v. Kellermeyer*, 2026 WL 2326103 (C.D. Cal.)	RESULT LIST ONLY	HireRight-caption result-list hits. Holdings not captured. Do not cite yet. *Waters* was tagged as a summary-judgment decision.
Mitchell v. Continental Casualty, 2025 WL 3443248 (N.D. Cal.); *Horton v. Takeda*, 2025 WL 3753527 (Cal. Ct. App.); *NFP v. Alliant*, 2024 WL 4818801 (C.D. Cal.)	RESULT LIST ONLY	§ 16600.5 search hits. Not read. The plan's request for an offer-letter prospective-employee decision remains open.
Menzel v. Scholastic, 2018 WL 1400386; *Luong v. Alameda County*, 2018 WL 2021244; *Fitzgerald v. Bosco Credit*, 2016 WL 5791253 (all N.D. Cal.)	RESULT LIST ONLY	Information-and-belief pleading in Ninth Circuit district courts. Not read.
Doe v. Brown, 177 Cal. App. 4th 408; *Doe v. California Department of Justice*, 173 Cal. App. 4th 1095; *McCallum v. Batista*, 2020 WL 1150273; *Francis v. Forewarn*, 2026 WL 2607166 (N.D. Ill. Sept. 3, 2026)	RESULT LIST ONLY	Appeared on adverse or NSOPW-related § 290.46 searches. Not read. *Doe v. Cal. DOJ* also appears in Westlaw Notes of Decisions on § 290.46.
Cisneros v. U.D. Registry, 39 Cal. App. 4th 548 (1995); *Bernuy v. Bridge Property Management* (2023) 306 Cal. Rptr. 3d 539	Notes of Decisions only (on § 1786.50)	Not opened. *Bernuy*: limitations and sufficiency of allegations, per the digest line.

AUTHORITY	VERIFICATION LEVEL	ROLE IN THIS MEMORANDUM
Doe v. DMV (2024) 322 Cal. Rptr. 3d 424; *Garcia-Brower v. Premier Automotive* (2020) 269 Cal. Rptr. 3d 856; *Tilkey v. Allstate* (2020) 261 Cal. Rptr. 3d 435 (vacated)	Notes of Decisions only (on § 432.7)	Not opened. Do not rely on the vacated *Tilkey* decision.
Yohner v. California Department of Justice, 237 Cal. App. 4th 1 (2015); *In re S.B.*, 222 Cal. App. 4th 612 (2013)	Notes of Decisions only (on § 290.46)	Not opened. Digest lines: construction and application (*Yohner*); construction with federal law (*In re S.B.*).
People v. Superior Court (Feghhi) (2026) 344 Cal. Rptr. 3d 374; *Kazelka v. DMV* (2025) 331 Cal. Rptr. 3d 251; *People v. Alvarez* (2023) 316 Cal. Rptr. 3d 705; *Decker v. DMV*, 6 Cal. 3d 903; *Giomi v. Director of DMV*, 15 Cal. App. 3d 905	Notes of Decisions only (on Veh. Code § 23612)	Not opened. Not captured as deciding the § 432.7 "record of arrest" question.
Hill Medical v. Wycoff, 86 Cal. App. 4th 895; *IBM v. Bajorek*, 191 F.3d 1033 (9th Cir.); *Meta v. BrandTotal*, 605 F. Supp. 3d 1218 (N.D. Cal. 2022); *Latona v. Aetna*, 82 F. Supp. 2d 1089	Notes of Decisions only (on § 16600)	Not opened.
Heagerty v. Equifax, 447 F. Supp. 3d 1328; *Millstone v. O'Hanlon*, 528 F.2d 829 (8th Cir. 1976); cases listed as Jolly, Caltabiano, and Weidman (full names not captured); *Kirtz v. Trans Union*, 46 F.4th 159, *aff'd*, 601 U.S. 42 (2024); *Doe v. Charter Communications*, 131 F.4th 323 (5th Cir. 2025)	Notes of Decisions only (on 15 U.S.C. §§ 1681e(b), 1681o)	Not opened. Full names of Jolly, Caltabiano, and Weidman were not captured — do not invent them, and do not cite those three from this memorandum.
Later KeyCite citing references listed in Table 2 (*Cross*, *Towner*, *Walker*, *Snell*, *Askins*, *Legacy Partners*, *Sosa*, *Bohnak*, *Kelly*, *Zimmerman*, *Moran*, *Bernuy*, *AMN Healthcare*, *Samuelian*, *Beltran*, *Rara*, *Mintun*, *Schutte*, *Davis*, *Sims*, *Modiri*, *Harris v. Vector Marketing*, *Wright v. Lincoln Prop.*)	KEYCITE later references, not read (and, for *Wright*, unchecked)	Listed for KeyCite awareness only. Do not cite from this memorandum as support for a holding.

V. Open items not yet completed

The seven-page research plan is not finished. The following work was not done in the November 12 sessions, or was only partly done. Each item can still change how a claim is pleaded or briefed. This memorandum does not fill those gaps from memory or from free-source compilation.

A. Research-plan Part 6 — defenses and procedure (not run as a session)

- Citing references to *Donaleski*, and how plaintiffs have distinguished it.
- Later treatment of *Mendoza* beyond the KeyCite later cases named above, which themselves were not read.
- *Lerma v. Amazon.com Services*, No. 8:22-cv-01727 (C.D. Cal.), docket 36 order — a dismissal the plan says should be distinguished because the report showed no registry record. Not pulled.

- Specific-statute authorization defense: *Pastrana v. Local 9509* (S.D. Cal. 2008), and Penal Code § 11105(c), not pulled. Paragraph 51 already alleges that Hertz did not obtain the information through § 11105 or § 11105.3.
- Anti-SLAPP in federal court, including *Planned Parenthood v. Center for Medical Progress*, 890 F.3d 828 (9th Cir. 2018), flagged in the plan as "[CHECK]." *Park v. Board of Trustees* was KeyCited (yellow) and not re-read.
- LLC citizenship pleaded on information and belief: *Johnson v. Columbia Properties Anchorage*, 437 F.3d 894 (9th Cir. 2006), and *Carolina Casualty Insurance Co. v. Team Equipment*, 741 F.3d 1082 (9th Cir. 2014), flagged "[CHECK]," not pulled.
- FCRA preemption of the state counts, 15 U.S.C. § 1681t, not searched.
- Alternative and inconsistent pleading under Rule 8(d)(2) and (3) in the Ninth Circuit — Count 4 is already pleaded in the alternative; the planned search was not run.

B. Research-plan Part 7 — dockets, analytics, and secondary sources (not run)

- HireRight, LLC Federal Rule of Civil Procedure 7.1 disclosure statements, for the diversity allegation in ¶¶ 7 and 10.
- Hertz Corporation Rule 7.1 statements and Form 10-K (incorporation, principal place of business, relationship with Hertz Global Holdings). Paragraph 8 already reserves the right to seek leave to add the parent.
- Docket search for other complaints pleading § 290.46(j) in an employment setting, and for allegation language that survived motions.
- HireRight "Managed Adjudication" in dockets, news, and Company Investigator — relevant to the Count 1 attribution allegation (¶¶ 37, 40, 46).
- Litigation Analytics for San Jose Division judges' grant rates on FCRA and employment-screening Rule 12(b)(6) motions, and on § 1367(c) declinations.
- A docket alert for Matter 26 (a related UPS action in the Eastern District of California, 2:26-cv-02847) on the national-registry source argument, before Judge Delaney — not set. (Patron Access does not support KeyCite Alerts.)
- Secondary sources named in the plan: National Consumer Law Center, *Fair Credit Reporting* (employment-screening and criminal-record chapters); Rutter, California Practice Guide: Employment Litigation (background checks, § 432.7, Fair Chance); Witkin, Summary of California Law; law reviews on Megan's Law and employment.

C. The four opening moves, and other unfinished plan items

- **Westlaw Quick Check of the complaint** was not run. The plan called this the fastest way to find on-point cases the draft misses, and to see warnings on cited cases.
- **KeyCite Alerts** on *Mendoza*, *Gilberg*, *Parsonage*, *Yeh*, *McInerney*, and *TransUnion* cannot be set in Patron Access.
- **Formal KeyCite** was not recorded in Session 1 for the nine opinions later read in full, other than *Mendoza*, *Parsonage*, and the flags noted on *Ridenour* and *Brown*. Run KeyCite on *Seyed-Ali*, *Healy*, *A.S.*, *Saberin*, and *McGroarty* before filing.

- **Unchecked KeyCite items:** the unexplained red-flag tooltip on *Yeh*'s History diagram; *Ridenour*'s four negative entries; *Brown*'s "Declined to Extend by Wright v. Lincoln Prop…" entry; *McInerney*'s pending petition for review (filed October 28, 2026).
- **Notes of Decisions not reviewed:** 11 on § 1786.2; 8 on § 1786.16; most of the 51 on § 432.7; most of the 27 on § 290.46; the Vehicle Code and § 16600 lists set out in Table 3.
- **Partial statute excerpts:** the (i)–(vi) list in § 1786.16(a)(2)(B), and a complete quotation of § 1786.2(c), were not captured in the catalogs. Re-open those sections before quoting beyond what this memorandum sets out.

D. Research-plan Section 9 goals that remain open

- No published or reasoned decision was read that holds that registry information retrieved through NSOPW (or another national index) remains "information disclosed pursuant to" a state Megan's Law statute.
- No full-text case was read that treats a consumer reporting agency's adjudication grade or reason code as consumer-report information under § 1681e(b). *Ridenour* and *Brown* help on mislabeled criminal information and on pre-decision correction; they do not answer the adjudication-grade question in so many words.
- The DMV-or-administrative-record-misreported-as-criminal question has helpful full-text analog authority (*Ridenour*, traffic reported as a crime), not a Ninth Circuit holding on a chemical-test-refusal entry.
- A post-*TransUnion* Ninth Circuit or Northern District decision on ICRAA or FCRA disclosure standing, where an undisclosed report was used to deny employment, is approximated by *Seyed-Ali* (Central District, 2025, FCRA notice plus ICRAA, offer revoked) and by *Healy* (Ninth Circuit, 2026, § 1681e(b) standing). A Northern District opinion on that exact disclosure-standing pattern was not read.
- No full-text § 16600.5 decision was read that allows a prospective employee's claim based on an offer-letter noncompete term. The 2024 statute itself authorizes the action.
- Adverse authority that was found has been logged in this memorandum, principally *Mendoza*, *McGroarty*, *Donaleski*, and *Saberin*.

> **DOCUMENT-LIMIT HISTORY, FOR THE NEXT WESTLAW SESSION**
>
> Patron Access hit "Document Limit Reached" twice on November 12, 2026, on earlier logins: first while opening Civil Code § 1786.50 (about 10:22 a.m. Pacific Time), and again after the new-cites searches, which is why those searches produced result lists only. Searching and result lists continued to work after the limit; opening full text did not. A third saved login, on the same Hillsborough Patron Access path, was used for the nine full-text reads and did not hit the limit in that session. Westlaw's Patron Access terms, accepted at the user's direction, bar automated scraping and mining. Further reading on that account should be done at a human pace, on the screen, and without automated collection. Several other libraries' remote Patron Access links (Clark, Riverside, San Diego, Harris, Hays) displayed an error on the day of this research and were not used.

VI. Sources, method, and how to use this memorandum

This memorandum is compiled only from the following files, together with the 25-page verified complaint they were read against. No citation, quotation, or pin cite has been supplied from memory or from a source outside these files.

Table 4. Source files

FILE	WHAT IT CONTAINS
The seven-page Westlaw research plan (workspace file plan.txt)	Queries, elements, soft spots, and the Part 8 KeyCite checklist, prepared November 12, 2026, against the verified complaint.
The 25-page verified complaint (draft, dated November 12, 2026)	Five causes of action and the paragraph numbers used in the recommended edits. The complaint was not yet assigned a case number in the copy reviewed.
catalog-01-keycite.md	Session 1 KeyCite checklist, seventeen plan authorities plus the Attorney General opinion.
catalog-02-statutes.md	Partial Westlaw annotated statutes, including the full displayed text of Penal Code § 290.46(j), before the first document-limit stop.
catalog-02b-statutes-official.md	Official LegInfo and GovInfo statute text, retrieved the same day after the Westlaw document limit, used here to supply full wording that the later Westlaw re-run confirmed.
catalog-02c-statutes-westlaw-rerun.md	Westlaw re-run of the statutes, about 11:55 a.m. Pacific Time on November 12, 2026, with currency notes, credits (including Senate Bill 384), remedies, and Notes of Decisions lists.
catalog-03-newcites.md	New-cite searches, result lists only, about 12:15 p.m. Pacific Time, after the document limit. Marked unverified in the catalog itself.
catalog-04-fulltext.md	Nine full-text reads on a later Hillsborough login, about 12:25 p.m. Pacific Time, with on-screen quotations. The catalog warns that star pages are approximate where noted, and should be verified against the reporter before filing.

How to use this memorandum. It is a pre-filing research aid. The ten recommended edits in Table 1 are the practical output. The cause-by-cause sections explain why those edits are suggested and where the authorities are weak or adverse. The KeyCite and authorities tables are a pre-filing checklist: anything marked “result list only,” “unchecked,” or “open” should be resolved, or omitted, before it appears in a pleading. Star-page citations marked approximate (*Healy* at approximately *709, and any other session note so marked) must be confirmed against the official reporter. This memorandum is not legal advice, has not been filed or served, and should not be attached as an exhibit without a deliberate decision that its contents, including its discussion of adverse authority, belong in the public record.

FINAL REMINDER

Research memorandum — not legal advice; prepared from Westlaw Patron Access and official sources; verify before filing. Prepared November 12, 2026, in the America/Los_Angeles time zone (Pacific Time), for Brendan Ngwa Nforbi, plaintiff in propria persona, in *Nforbi v. The Hertz Corporation and HireRight, LLC*, United States District Court for the Northern District of California, San Jose Division.